CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, May 8, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, May 8, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

A motion was made to move the agenda to approve the consent agenda and the add-ons to allow the clerk to disburse additional documents to the commission.

It was moved by Mayor Pigatt, seconded by Commissioner Bass to amend the agenda.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: deferred 16(B)1, 16(B)2, and 16(B)4 (Commissioner Burke); pulled 13-3 (Vice

Mayor Davis); pulled 13-1, 13-3 and 13-5 (Commissioner Kelley).

NEW ITEM(S):

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REAFFIRMING THE CITY'S OBLIGATION TO COMPLY WITH THE 2003 FINANCIAL INTEGRITY ORDINANCE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

Mayor Pigatt asked the manager what was the emergency condition for this item.

Acting City Manager Daughtrey said it was requested by the state to bring the City into compliance.

It was moved by Commissioner Kelley, seconded by Commissioner Bass to amend the agenda to include the above resolution as item 14-1.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY ATTORNEY TO ISSUE A CERTIFICATE LETTER TO GRACE AND NAEEM, INC., DEMANDING THAT IR REMOBILIZE AND COMPLETE THE RENOVATION OF HISTORIC CITY HALL, OR FACE A DEMAND FOR FORFEITURE OF ITS PERFORMANCE BOND; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

Mayor Pigatt asked the manager what was the emergency condition for this item.

Commissioner Kelley said the Hurricane season is upon us and the historic city hall needs to be repaired; the City cannot afford to keep waiting.

It was moved by Commissioner Burke, seconded by Commissioner Kelley to amend the agenda to include the above resolution as item 14-2.

Mayor Pigatt asked the manager if the letter he sent out was communicated to Grace and Naeem.

Acting City Manager Daughtrey said the letter the mayor sent went out today so they have not had the opportunity to respond.

Mayor Pigatt asked Commissioner Kelley to defer the item until the contractor has an opportunity to respond to his letter.

Commissioner Kelley said he heard the mayor's concern and will wait a week, but not longer than that. He deferred the item.

14-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, WAIVING THE PROCUREMENT REQUIREMENTS ON AN EMERGENCY BASIS; AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH WORLD PETROLEUM CORPORATION IN THE AMOUNT OF ONE HUNDRED TWENTY THOUSAND FOUR HUNDRED AND TWENTY FOUR DOLLARS ($120,424.00), FOR EMERGENCY ENVIRONMENTAL CLEANUP SERVICES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

Mayor Pigatt asked the manager what was the emergency condition for this item.

Acting City Manager Daughtrey said someone has poured a large amount of oil in the drain on 127th Street. There is work being done on that road and the contractor cannot continue because DERM has stated that the spill must be cleaned up immediately or the City will face hefty fines it cannot afford.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to amend the agenda to include the above resolution as item 14-3.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Kelley to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – March 13, 2019

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the minutes from the Regular Commission Meeting of March 13, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – April 10, 2019

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of April 10, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, said that he does not have anything to report at this time, but will take any concerns the commission may have back to Commissioner Jordan.

Commissioner Kelley thanked Mr. Gardner for scheduling the meeting with the Super Bowl Committee even though it was re-scheduled. He said there continues to be near accidents on The Connector and Veteran's Way near the new Amazon Warehouse. He asked that signs are put up to deter this ongoing issue.

Mr. Gardner said he will look into the matter.

City Clerk Flores announced that District I Representative Mr. Cedric Brazle no longer works for Commissioner Jean Monestime's Office and she has not been informed of a new representative as of yet.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, FL, said she is thankful and grateful that Commissioner Kelley has brought item 4 for consideration as the seniors are in need of a new bus for their program.

12. ACTION ITEMS:

1 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER AND CITY ATTORNEY TO DEVELOP A COMPREHENSIVE PLAN OF ACTION TO ADDRESS CONCERNS RAISED REGARDING THE CITY'S CODE ENFORCEMENT PROCESS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by City Manager

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Burke asked what process they were referring to because there are several processes.

City Attorney Brown said the entire Code Enforcement gamut. The City should look at other Cities Code Enforcement process and come up with a best practice to eliminate what is currently going on in Code Enforcement at this time.

Vice Mayor Davis said he agrees.

Commissioner Kelley said he was one of the ones that was pushing for it especially when there are running liens that come up frequently. He also said there needs to be a timeframe and some workshops to put things in order. There needs to be a cap placed on the liens.

Mayor Pigatt said maybe the City should wait until the new city attorney comes to start creating changes in the department.

Commissioner Kelley said the new city attorney already stated that the firm is going to hit the ground running and start reviewing the Code enforcement process.

A motion was made to amend the resolution to include a timeframe of sixty days to bring a plan back before the commission.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to amend the resolution.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO ALLOCATE $30,000.00 IN FISCAL 2019-2020 BUDGET FOR THE PURCHASE OF A BUS FOR THE "SENIORS ON THE MOVE" PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Mayor Pigatt said they have not yet had an opportunity to review a preliminary budget from the Parks Department to include this amount. He suggested deferring the item and scheduling a workshop to discuss this particular issue.

Commissioner Kelley said he is not in favor of a workshop because the Senior's on the Move Program has been neglected and the numbers have dwindled. They are long overdue for transportation.

Commissioner Burke said the seniors had transportation to do everything in the past including grocery shopping, picking up their prescriptions and extracurricular activities; now they cannot do anything. Something needs to be done immediately.

Vice Mayor Davis said he has observed the decline in the services offered by the seniors program and agreed that transportation needs to be provided right away.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REJECTING ALL BIDS RECEIVED IN CONNECTION WITH RFP NO. 19-0314100 AND FURTHER AUTHORIZING THE CITY MANAGER TO RE-ADVERTISE AND ISSUE A REQUEST FOR PROPOSALS FOR QUALIFIED FIRMS FOR ROOFING SERVICES/INTERIOR AND EXTERIOR REMODELING AT THE CULTURAL ARTS CENTER BUILDING LOCATED AT 2105 ALI-BABA AVENUE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING AN AGREEMENT WITH HENANDEZ UNDERGROUND, INC. (EXHIBIT "A"), FOR THE EMERGENCY REPAIR TO RESTORE SEWER CONNECTIVITY TO MIAMI-DADE COUNTY'S METER STATION 52; AND AUTHORIZING THE CITY MANAGER TO EXECUTE ALL

DOCUMENTS NECESSARY TO EFFECTUATE THE AGREEMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by City Manager

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REAFFIRMING THE CITY'S OBLIGATION TO COMPLY WITH THE 2003 FINANCIAL INTEGRITY ORDINANCE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE.
Sponsored by Commissioner Kelley

The above resolution was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Burke asked why this is coming before the commission now when according to the interlocal agreement, it should be done every year.

City Attorney Brown said the financial integrity ordinance was to be followed by the City; it did not have a sunset or a repealer clause, but the City simply stopped following it when it came out of financial oversight in 2003. This is in an effort to comply with the agreement.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, WAIVING THE PROCUREMENT REQUIREMENTS ON AN EMERGENCY BASIS; AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH WORLD PETROLEUM CORPORATION IN THE AMOUNT OF

ONE HUNDRED TWENTY THOUSAND FOUR HUNDRED AND TWENTY FOUR DOLLARS ($120,424.00), FOR EMERGENCY ENVIRONMENTAL CLEANUP SERVICES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley asked how the person(s) responsible will be addressed for causing this to happen.

Acting City Manager Daughtrey said they will go to the nearby businesses and pull any recordings that may be available and see if they can identify anyone they can go after to pay for what they have done.

Vice Mayor Davis asked the manager if this is a business inside or outside of the City.

Acting City Manager Daughtrey said they do not know who dumped the oil.

Mayor Pigatt said this is infuriating to have someone come and do this; this does not happen in other cities, only in Opa-locka. He asked if an investigation was done for catching the people who did this.

Acting City Manager Daughtrey said he went with the Chief of Police, the Public Works Director and a few others to assess the damages. It is a shame what is going on and they are doing what needs to be done to resolve the matter.

Commissioner Burke said back in that area is very dark and unless some cameras can be put up back there, they will come back again and try to get away with it once more.

Vice Mayor Davis asked if there was any kind of way to shift the blame to the local business owners because he finds it hard to believe that outsiders did this. Also, if the burden can be placed on DERM to determine who did this.

Mayor Pigatt said the people that are being paid with tax dollars should make sure things like this never happens and they expect for the same thing to happen in Opa-locka.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE FINAL SITE PLAN REVIEW REQUEST BY STRK PROPERTIES, LLC C/O TEJAS CHOKSI & RACHANA ARORA, TO CONSTRUCT A 102,500 SQUARE FOOT WAREHOUSE AND OFFICE BUILDING ON THE UNDEVELOPED PARCEL IDENTIFIED BY FOLIO 08-2129-000-0111 AT THE CORNER OF NW 43RD AVENUE AND NW 133RD STREET, OPA-LOCKA, FLORIDA 33054 IN THE I-3 ZONING DISTRICT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked if the land use has been converted at this time.

Community Development Director Gregory Gay, said that there are three (3) parts of this included on the agenda and they all need to be addressed starting with 16(b) 3 first as that is a land use item change from governmental use to industrial use.

Mayor Pigatt asked if the business owner was present.

Mr. Arora, 12845 NW 48 Avenue, Opa-locka, Florida, said they are currently in a 40,000 square foot building and the change will allow them to occupy a 102,000 square foot building.

Mayor Pigatt asked if any residents will be hired.

Mr. Arora said that sixty seven (67) residents from Opa-locka have been hired.

Commissioner Bass said kudos to the business for expanding and hiring residents.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE DEVELOPMENT AGREEMENT FOR THE FINAL SITE PLAN REVIEW REQUEST BY STRK PROPERTIES, LLC C/O TEJAS CHOKSI & RACHANA ARORA, TO CONSTRUCT A 102,500 SQUARE FOOT WAREHOUSE AND OFFICE BUILDING ON THE UNDEVELOPED PARCEL IDENTIFIED BY FOLIO 08-2129-000-0111 AT THE CORNER OF NW 43RD AVENUE AND NW 133RD STREET, OPA-LOCKA, FLORIDA 33054 IN THE I-3 ZONING

DISTRICT; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley asked the owner how many new jobs will be created with the expansion.

Mr. Arora said there will be about one hundred twenty (120) jobs.

Commissioner Kelley said he hopes that the residents will have an opportunity to gain employment because he has heard this in the past and when the time came almost no one locally was hired to work at certain businesses.

Mayor Pigatt said the City should partner with CareerSource to ensure job fairs are conducted and the resident's information can be placed on file for future consideration.

Planning & Community Development Director Gregory Gay said there is a clause in the developer's agreement to include the hiring of residents.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1 AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 15-31, THE CITY ZONING CODE, SECTION 22-143, CHAPTER 13 LICENSES AND BUSINESSES REGULATIONS, ARTICLE VIII STREET & MOBILE VENDORS, OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES; PROVIDING FOR DEFINITIONS, FOR PERMITAND APPLICATION REQUIREMENTS AND STANDARDS FOR SPECIAL EVENTS; PROVIDING FOR THE REPEAL OF ALL ORDINANCES IN CONFLICT HEREWITH' PROVIDING FOR SEVERABILITY; PROVIDING FOR INCLUSION IN THE CODE; PROVIDINNG FOR EFFECTIVE DATE. *Sponsored by City Manager*

This item was deferred by the sponsor.

2 AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND ORDINANCE 17-01 FOR THE PLANNING & ZONING BOARD, TO ESTABLISH CRITERIA FOR THE MINIMUM NUMBER OF MEMBERS TO CONSTITUTE A QUORUM FOR ALL MEETINGS AND TO EXPAND THE QUALIFICATIONS OF MEMBERSHIP TO BE A RESIDENT OR PROPERTY OWNER IN THE CITY OF OPA-LOCKA AND TO ADD REAL ESTATE PROFESSIONAL TO THE CATEGORY OF QUALIFIED OCCUPATIONS; PROVIDING A SEVERABILITY CLAUSE; PROVIDING FOR CONFLICT AND REPEALER CLAUSE AND RESCINDING ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE; *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Mayor Pigatt for discussion.

Vice Mayor Davis said he supports the item since the board has been having challenges lately with having a quorum for meetings.

Commissioner Kelley said he does not support the item at this time because he does not think it should be open to certain people.

Mayor Pigatt said he thinks it is a good idea and proposed that an amendment be made to Section 2(i) to maintain four residents on the board and the three others can fall under architect, landscape architect, engineer, real estate professional, or property owner and that would make the residents the majority.

It was moved by Mayor Pigatt, seconded by Vice Mayor Davis for discussion.

Vice Mayor Davis said he does not have a problem with having professionals serve on advisory boards because they can bring their ideas and expertise to the table; any final decision would come before the commission for approval.

Commissioner Kelley said he does not want professionals taking over the City because it has the potential to be bad especially if they have their own agenda.

There being no further discussion, the motion on the amendment passed by a 3-2 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes
Commissioner Kelley	No
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no discussion, the motion on the ordinance passed by a 3-2 vote.

Commissioner Burke	No
Vice Mayor Davis	Yes

Commissioner Kelley	No
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019). *Sponsored by City Manager* ***Deferred from 04/24/2019**

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Mayor Pigatt said he has gone through the budget and wants to know if it addresses the audits, infrastructure projects, roads and streets, etc…

Acting City Manager Daughtrey said the primary purpose of the budget amendments is to come into compliance with the budget that was approved for October 1, 2018. He said there will be an opportunity for a second budget amendment and he will have the chance to include some of the concerns of the commission.

Mayor Pigatt said he wants to ensure the budget is done correctly and allocated where it needs to go; he does not support the budget in this form at this time.

There being no further discussion, the motion on the ordinance passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES

AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FORT HE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on March 27, 2019). *Sponsored by City Manager* ***Deferred from 04/24/2019**

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 4-1 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	No

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO CONSIDER ADOPTING A SMALL SCALE AMENDMENT, LAND USE DESIGNATION CHANGE FROM GOVERNMENT TO INDUSTRIAL, FOR THE VACANT PROPERTY AT THE CORNER OF NW 43RD AVENUE AND NW 133RD STREET, OPA-LOCKA, FLORIDA 33054 AND IDENTIFIED BY FOLIO 08-2129-000-0111 IN THE I-3 (LIBERAL INDUSTRIAL) ZONING DISTRICT. LEGAL DESCRIPTION: THE NORTH 480 FEET OF THE WEST 420 FEET OF THE SOUTHWEST ¼ OF THE NORTHEAST ¼ OF THE NORTHWEST ¼ OF SECTION 29, TOWNSHIP 52 SOUTH, RANGE 41 EAST, MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR APPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE; (first reading/public hearing held on March 27, 2019). *Sponsored by City Manager* ***Deferred from 04/24/2019**

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes

Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said there has been a lot of milling going on in the City in the residential areas and they are tackling a lot of the potholes. The utility billing system should be complete and turned over to the county by June 30, 2019. The City continues to meet with the residents every third Saturday and are able to sit down with the residents and explain the bills and give the residents time to pay the bills.

Commissioner Burke asked what was going on with his project "Music in the Park".

Acting City Manager Daughtrey said special events insurance needs to be purchased in order for the event to take place and this is not included in the budget. He asked the Parks and Recreation Director to work on including it in his department's budget for the next fiscal year. There is currently three thousand five hundred dollars ($3,500.00) in the budget for this event, but the whole thing will cost around seventeen thousand dollars ($17,000.00). Additional monies will need to be raised and the insurance needs to be purchased.

Commissioner Kelley said he is glad that funds have been released to continue with the infrastructure projects. He commended the staff for the work they are doing. He said there are still several roads that need patching in small areas around the City and asked the manager to look into it after they finish with the targeted areas.

Mayor Pigatt thanked the manager for the work that is going on around the City. There are many projects going on and the residents see the changes that are happening. He asked for a report on the five year recovery plan and where the City is with it.

Acting City Manager Daughtrey said the state asked for an update as well and he will start focusing on it next week.

Mayor Pigatt said he would like for the City to be in compliance with submitting the five year recovery plan and the budget so they are covered and the officials not be in a position to be removed from office.

Commissioner Kelley asked the mayor not to scare everyone because the City is actually in good shape right now.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Vice Mayor Chris Davis

a) JLAC Funds / Community Visioning Workshop

Vice Mayor Davis thanked the manager for working with the state to receive almost seven hundred thousand dollars ($700,000.00), most of which will go towards infrastructure projects. He would like to have a workshop where the residents can give their ideas on where they would like to see some of the funds to go.

Commissioner Sherelean Bass
a) City Employee Support Recognition

Commissioner Bass said she attended two (2) home going services for City employees and there was no proper representation from the City. She said the employee's labor and provide services for the City and they should be recognized because they are like a family.

Commissioner Kelley said in the past things like flowers, police escort, and facility use was granted, but it was cut out when the City came under oversight. He is willing to work to create a fund or something in the future to address what she is saying. He said he met with the manager regarding Ingram Park and wants to ensure that something is done to reopen the park from dawn until dusk. He also wants to have a community cleanup day for the residents to come out and help with the restoration efforts. He thanked everyone who was able to participate in the National Day of Prayer last week; Feeding South Florida will be held on next week; the summer youth employment program will start soon and word needs to get out to the residents so they can apply by the deadlines.

Mayor Pigatt agreed that Ingram Park needs to be reopened because it is a beautiful park; the summer youth employment program will be good for the residents and he is happy about it; he also encouraged all high school senior's to apply for the educational scholarship program.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 10:28 p.m.

MAYOR

ATTEST:

CITY CLERK